should be instituted, and there was no violation of the Federal Constitution in adjudging the rights of the plaintiffs accordingly. *Kentucky Union Co.* v. *Kentucky*, 219 U. S., pp. 156, 157; *Terry* v. *Anderson*, 95 U. S. 628.

The judgment of the Supreme Court of Louisiana is affirmed.

Judgment affirmed.

WILSON *v.* UNITED STATES.

SAME *v.* SAME.

SAME *v.* SAME.

ERROR TO, AND APPEALS FROM, THE CIRCUIT COURT OF THE UNITED STATES FOR THE SOUTHERN DISTRICT OF NEW YORK.

Nos. 759, 760, 788. Argued March 2, 3, 1911.—Decided April 15, 1911.

Hale v. *Henkel*, 201 U. S. 43, followed to effect that a witness properly subpœnaed cannot refuse to answer questions propounded by the grand jury on the ground that there is no cause or specific charge pending.

The *ad testificandum* clause is not essential to the validity of a subpœna *duces tecum*, and the production of papers by one having them under his control may be enforced independently of his testimony.

Where the subpœna *duces tecum* contains the usual *ad testificandum* clause it is not necessary to have the person producing the papers sworn as a witness. The papers may be proved by others.

The right of one responding to a subpœna *duces tecum* to show why he need not produce does not depend on the *ad testificandum* clause, but is incidental to the requirement to produce.

Corporate existence implies amenability to legal powers, and a subpœna *duces tecum* may be directed to a corporation.

A corporation is under a duty to produce records, books and papers in its possession when they may be properly required in the administration of justice.